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In the
Supreme Court of the United States

OCTOBER TERM, 1995

JAMES O'CONNOR,

Petitioner,

v.

CONSOLIDATED COIN CATERERS CORP.,

Respondents.

On Writ Of Certiorari
To The United States Court Of Appeals
For The Fourth Circuit

**BRIEF OF THE STATES OF MARYLAND,
ARKANSAS, DELAWARE, MICHIGAN, NEVADA,
NEW JERSEY, OKLAHOMA AND SOUTH DAKOTA
AS AMICI CURIAE IN SUPPORT OF RESPONDENT**

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QUESTION PRESENTED

Can an individual establish a prima facie case that he was discharged on the basis of age when his replacement is within the class of persons protected against age discrimination?

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AMICI CURIAE IN SUPPORT OF RESPONDENT**

This brief is submitted by the *amici* states through their respective Attorneys General in accordance with Rule 37.5 of the Rules of the Supreme Court.

INTEREST OF AMICI CURIAE

Because the Age Discrimination in Employment Act (ADEA) defines "employer" to include "a state or political subdivision of a state," 29 U.S.C. § 630(b), a state agency that violates the ADEA is liable for both legal and equitable relief. 29 U.S.C. § 626(b) & (c). Institutional employers such as the States, like their private sector counterparts, have an acute interest in knowing the rules that govern ADEA litigants. The States, therefore, have a strong interest in this case because it requires this Court to define the nature of proof needed to establish a prima facie case in causes of action instituted pursuant to the ADEA.

STATEMENT OF THE CASE

James O'Connor initiated the present action pursuant to the ADEA following his discharge from employment with Consolidated Coin Caterers Corporation (Consolidated). *O'Connor v. Consolidated Coin Caterers Corp.*, 56 F.3d 542, 543 (4th Cir. 1995). O'Connor was 56 years of age at the time of his discharge; he was replaced by someone who was 40 years of age. *Id.* at 544. The United States District Court for the Western District of North Carolina granted summary judgment in favor of Consolidated, ruling that O'Connor had failed to establish, under the proof scheme enunciated in *McDonnell Douglas Corp. v. Green*, 411 U.S. 792 (1973), a prima facie case that Consolidated had done anything other than treat age neutrally in deciding to terminate him. 56 F.3d at 545. The district court went on to hold that O'Connor had likewise failed to establish by traditional proof methods that his discharge was age-based. *Id.*

On appeal, the United States Court of Appeals for the Fourth Circuit affirmed the judgment. The court held that O'Connor could not survive summary judgment under the

McDonnell Douglas rubric because the employee who replaced him was outside of the class of persons protected by the ADEA. *Id.* at 547. The court held that O'Connor fared no better in his efforts to offer direct proof that age was the determining factor in Consolidated's decision to discharge him. *Id.* at 549-50. The court found no discriminatory intent was evinced by the age-related remarks that Consolidated allegedly made. *Id.*

Judge Butzner filed a separate opinion concurring in part and dissenting in part. *Id.* at 550-51.

SUMMARY OF ARGUMENT

This Court should adopt the requirement that the court of appeals imposed in this case. Just as discriminatory intent is not manifested when a member of a particular race, national origin, or gender is replaced by a member of the same classification, such intent does not arise under the ADEA when one member of the protected classification replaces another. The rule that the court of appeals used should be affirmed because it parallels the line drawing that Congress engaged in when it enacted the ADEA, and it ensures consistent results when determining whether a party has made out a prima facie case under the ADEA.

ARGUMENT

A PLAINTIFF ALLEGING AN UNLAWFUL VIOLATION OF THE ADEA MUST SHOW, TO ESTABLISH A PRIMA FACIE CASE UNDER THE MCDONNELL DOUGLAS CRITERIA, THAT HE WAS REPLACED BY SOMEONE OUTSIDE OF THE PROTECTED AGE GROUP.

The decision of the court of appeals -- that in ADEA cases the plaintiff must focus on the personal characteristics of the person chosen to replace him and show that he or she

was someone outside of the class of persons protected against age discrimination -- should be affirmed for the principal reason that it is consistent with Congress' decision to craft bright lines in limiting the ADEA's protection to those falling within a defined age group.¹ In setting forth that the ADEA is "to promote employment of older persons based on their ability rather than age [and] to prohibit arbitrary age discrimination in employment," 29 U.S.C. § 621(b), Congress deliberately chose to have the statute's prohibitions apply only to those individuals at least 40 years of age and less than 65 years of age. 29 U.S.C. § 631(a). This choice sharply distinguishes the ADEA from virtually any other civil rights statute, such as Title VII, for example, which extends its protections to *all* members of a particular race, national origin, gender, or other statutorily defined class.

The test that the court of appeals applied results in no more of an injustice than does that which derives from Congress' decision to delimit the class of plaintiffs eligible for protection under the ADEA. In fact, a bright line rule, requiring a plaintiff to show as an essential part of his *prima facie* case that he was replaced by someone outside of the class of persons protected by the ADEA, is fully consonant with Congress' drawing of a clear line in limiting the protections of the ADEA to a defined age group.

The court of appeals' requirement also provides an

¹ The Fourth Circuit is not alone in requiring an ADEA plaintiff to show that he or she was replaced by someone outside of the protected class. The Sixth Circuit adheres to a like view, *see LaPointe v. United Autoworkers Local 600*, 8 F.3d 376, 379 (6th Cir. 1993), though it did not always do so as evidenced by a case predating *LaPointe*. *See Barnes v. Gencorp, Inc.*, 896 F.2d 1457, 1466 (6th Cir. 1990).

unambiguous, workable rule that, to the exclusion of any other rule, best befits the age characteristic. Requiring that the age of the person chosen to replace the ADEA claimant be outside of the ADEA's protected class, as an essential element of the *McDonnell Douglas* framework, ensures the precise type of objective evidence that provides the basis for a permitted inference of discriminatory intent. The first and third prongs of the *McDonnell Douglas* scheme are no more than standing requirements; the discharge constitutes the cognizable injury, and being a member of the ADEA's protected class satisfies the requirement of being within the ambit of interests protected by the statute. *McCorstin v. United States Steel Corp.*, 621 F.2d 749, 753 (5th Cir. 1980). The second prong relating to the plaintiff's qualifications for the job, at most, operates to negate a possible rebuttal to the claim of discrimination that has been deemed reasonable to place within the plaintiff's burden of proof. *Id.* A showing that the plaintiff was replaced by someone *outside* the protected class is evidence truly probative of unequal treatment and is, therefore, a relevant consideration.

This type of showing provides the courts with the most effective and trustworthy method by which to deal with age-based discrimination cases predicated on circumstantial evidence. As Petitioner concedes, unlike race or gender, age is not an immutable characteristic. Brief of Petitioner at 17. Age is a matter of degree. It is a continuum. A disparity in age can result from a differential spanning many or a few years, or even only months. It is this quality which compels the bright-line rule employed by the court below.

Amici recognize that other circuits have not required a plaintiff to show as part of his or her *prima facie* case proof that the replacement employee is outside the protected age group. *See Roper v. Peabody Coal Co.*, 47 F.3d 925, 927

(7th Cir. 1995); *Rinehart v. City of Independence, Mo.*, 35 F.3d 1263, 1266 (8th Cir. 1994); *Freeman v. Package Machinery Co.*, 865 F.2d 1331, 1335 n.2 (1st Cir. 1988); *Bienkowski v. American Airlines, Inc.*, 851 F.2d 1503, 1505 (5th Cir. 1988); *Cooper v. Asplundh Tree Expert Company*, 836 F.2d 1544, 1547 (10th Cir. 1988); *Maxfield v. Sinclair International*, 766 F.2d 788, 792 (3d Cir. 1985); *Haskell v. Kaman Corp.*, 743 F.2d 113, 122 (2d Cir. 1984); *Douglas v. Anderson*, 656 F.2d 528, 532-33 (9th Cir. 1981); *Cuddy v. Carmen*, 694 F.2d 853, 857 (D.C. Cir. 1982). But the tests that have been substituted in place of this requirement are unworkable, inconsistent with one another, and incompatible with the essentially arbitrary line that Congress drew in enacting the ADEA.

For example, both the District of Columbia and the Tenth Circuit Courts of Appeals allow an ADEA claimant to show that he or she was replaced by a "younger" person. *Cuddy v. Carmen*, 694 F.2d at 857; *Cooper*, 836 F.2d at 1547. Under this paradigm, a discharged employee of 49 years of age could establish a prima facie case of age-based discrimination in any case where the person replacing him or her is "younger," even if the age disparity is a year or even less. Stated differently, under the "younger" person approach, an inference of age discrimination would be permitted even where the probative value of such an inference would be virtually nonexistent.

In apparent recognition of the difficulty created by the "younger" person formulation, other circuits have qualified that test somewhat. The Third, Fifth, Seventh, and Eighth Circuit Courts of Appeals require that the employee who replaced the plaintiff be "sufficiently" younger than the plaintiff. See *Maxfield*, 766 F.2d at 792; *Bienkowski*, 851 F.2d at 1505; *Roper*, 47 F.3d at 927; *Rinehart*, 35 F.3d at 1266. The Second and Ninth Circuit Courts of Appeals

require that the plaintiff show that the employee who replaced him or her was "substantially" younger than he or she. See *Haskell*, 743 F.2d at 122; *Douglas v. Anderson*, 656 F.2d at 532-33.

Far from eliminating the difficulty engendered by the "younger" person showing, the "sufficiently" and "substantially" younger requirements only add to the problem. What constitutes a "sufficient" or "substantial" age disparity is an open question. The vagueness inherent in both terms will only inspire irreconcilable results.

In contrast, requiring that a plaintiff show that the person who replaced him or her was someone outside of the protected class provides the sort of meaningful guidance needed when grappling with age-based discrimination claims under the *McDonnell Douglas* rubric. It promotes ease of administration, and leads to a result that renders application of the *McDonnell Douglas* scheme neither mechanistic nor ritualistic. Importantly, it ensures that an inference of discriminatory intent will be drawn in those circumstances warranting such an inference, and eliminates the inconsistent judicial line drawing that courts have engaged in when determining whether a prima facie case has been made out.

The United States and the American Association of Retired Persons, in their respective briefs as *amicus curiae*, contend that the rule applied by the court below runs counter to the proposition stated by this Court in *Connecticut v. Teal*, 457 U.S. 440, 454 (1982), that an employer cannot escape liability for a specific instance of racial discrimination by treating other members of the affected party's racial group favorably. See Brief of United States at 15-16; Brief of American Association of Retired Persons at 21. This argument confuses unlawful

discrimination with discriminatory intent. *Teal* was a disparate impact case. In such cases, the focus is on whether the challenged practice has a discriminatory effect.

Here, the focus is on the entirely separate matter of discriminatory intent. As this Court pointed out in *Teal*, "[p]roof that a work force was racially balanced or that it contained a disproportionately high percentage of minority employees is not wholly irrelevant on the issue of intent when that issue is yet to be decided." 457 U.S. at 454. Likewise, proof that the employee who replaced the ADEA claimant is someone outside of the protected class is relevant insofar as it permits the inference of age-based discrimination to be drawn.

Put simply, *Teal* does not stand for the proposition that unlawful discriminatory intent is evinced when a female employee is replaced with another female, or when an African-American employee is replaced with another African-American. It is equally nonsensical to hold in this case that replacing a discharged employee with someone within the protected age group constitutes impermissible discrimination under the ADEA.

CONCLUSION

For the reasons stated, the judgment of the court of appeals should be affirmed.

Respectfully submitted,

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